



NON-DISCLOSURE AGREEMENT

QSL/NDA/2026-0064

This Non-Disclosure Agreement ("**Agreement**") is made and entered into on **26 June 2026** ("**Effective Date**") between:

Qalibrated Systems Limited, a company duly incorporated under the laws of the Republic of Kenya, with its registered office at P.O. Box 34463–00100, Nairobi, Kenya ("**QSL**" or the "**Disclosing Party**"); and

Tropical Foods Processors Ltd, a company duly incorporated under the laws of the Republic of Kenya, with its registered office at — ("**the Recipient**").

QSL and the Recipient are each referred to individually as a "**Party**" and collectively as the "**Parties**".

Recitals

- A.** The Parties wish to explore a potential business relationship concerning the calibration, inspection, and maintenance of weighing and measurement equipment ("**the Purpose**").
- B.** In connection with the Purpose, each Party may disclose to the other certain confidential and proprietary information.
- C.** The Parties wish to protect such information in accordance with the terms of this Agreement.

1. Definition of Confidential Information

- 1. "Confidential Information" means any technical, commercial, financial, or operational information disclosed by either Party, whether in writing, orally, electronically, or by any other means, that is designated as confidential or that, by its nature, would reasonably be understood to be confidential, including but not limited to pricing, technical specifications, client lists, calibration methodologies, and business plans.
- 2. Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the receiving Party; (b) was already lawfully in the receiving Party's possession prior to disclosure; (c) is independently developed without reference to the disclosing Party's Confidential Information; or (d) is rightfully obtained from a third party without restriction.

2. Obligations of the Recipient

- 1. The Recipient shall use the Confidential Information solely for the Purpose and shall not disclose it to any third party without the prior written consent of QSL.
- 2. The Recipient shall protect the Confidential Information using at least the same degree of care it uses to protect its own confidential information, and in no event less than a reasonable degree of care.
- 3. The Recipient shall limit access to the Confidential Information to its employees, officers, and advisors who have a genuine need to know it for the Purpose and who are bound by confidentiality obligations no less restrictive than those set out herein.

3. Term

- 1. This Agreement shall remain in effect for a period of **three (3) years** from the Effective Date, unless terminated earlier by mutual written agreement of the Parties.

2. The obligations of confidentiality under Clause 2 shall survive termination or expiry of this Agreement for a further period of **two (2) years**.

4. Return or Destruction of Information

1. Upon written request by the Disclosing Party, or upon termination of discussions relating to the Purpose, the Recipient shall promptly return or destroy all Confidential Information in its possession and certify such destruction in writing if requested.

5. No Licence or Obligation to Proceed

1. Nothing in this Agreement shall be construed as granting any licence or right to either Party in respect of the other's Confidential Information, except as expressly stated herein.
2. Neither Party is under any obligation to proceed with the Purpose or any further business relationship as a result of entering into this Agreement.

6. Governing Law & Dispute Resolution

1. This Agreement shall be governed by and construed in accordance with the laws of the Republic of Kenya.
2. Any dispute arising out of or in connection with this Agreement shall first be referred to good-faith negotiation between the Parties, and failing resolution within thirty (30) days, shall be referred to arbitration in Nairobi in accordance with the Arbitration Act, 1995 (Kenya).

For Qalibrated Systems Limited

Name & Title

Signature & Date

For the Recipient

Name & Title

Signature & Date